CALEB MUCHECHE
versus
MINISTER OF PUBLIC SERVICE, LABOUR AND SOCIAL WELFARE N.O.
and
REGISTRAR OF LABOUR N.O.

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 27 March & 20 April 2026

Court Application

Applicant in person
T J Gundumura, for the respondents

DEMBURE J:

On 27 March 2026, the court, after hearing submissions from the applicant and counsel for the respondents, handed down an *ex tempore* judgment in terms of which I found the respondents' opposition to be fatally defective. The respondents' opposing papers were accordingly struck out, and the matter was dealt with as unopposed. I thereafter granted the application in terms of the draft order, and the terms of the said order read as follows:

> "1. The instant application be and is hereby granted.
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> 2. It is hereby declared that the systematic failure by the 1st and 2nd Respondents to ensure that all Employment Codes of Conduct under section 101 of the Labour Act [Chapter 28:01], National Code of Conduct SI 15 of 2006, Public Service Regulations SI 1 of 2000 as amended and any other employment/workplace code of conduct like the Health Services Regulations, Judicial Service Regulations, Military Service Regulations, Prisons and Correctional Services Regulations, State Security Staff code of conduct/regulations are translated into all the constitutionally recognised official languages is in fragrant violation of sections 2, 6, 56, 63 and 65 of the Constitution of Zimbabwe.
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> 3. The Registrar of Labour be and is hereby directed to ensure and enforce the mandatory translation of existing and newly registered Employment Codes of Conduct from English language into all the constitutionally recognised official languages of Zimbabwe within three (3) months of the granting of the order.
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> 4. The 1st Respondent shall, within three (3) months of the granting of this order, initiate and/or complete the necessary legislative amendments to the Labour Relations (Employment Code of Conduct) Regulations, 1990 (SI 379 of 1990) to explicitly and

fully incorporate all officially recognised languages of Zimbabwe, as provided for by section 6 of the Constitution of Zimbabwe.

5. There is no order as to costs."

The respondents' legal practitioners requested the written reasons for the court's decision. The following are the full written reasons thereof:

FACTUAL CONSPECTUS

The applicant is Caleb Mucheche, an adult male Zimbabwean. He pleaded that he is the first President of the Zimbabwe African Labour Law Society/Association for Legal Practitioners in Zimbabwe, the founder President of the Labour Association Zimbabwe, a legal author/researcher/lawyer, and a law lecturer. He is also the former Dean of the Law Faculty of a Zimbabwean University. He averred that he felt compelled by conscience and a sense of legal justice to bring this court application as *pro-bono* public interest litigation to challenge the disenfranchisement perpetrated against the majority of Zimbabwean workers. The first respondent is the Minister of Public Service, Labour and Social Welfare, cited in his official capacity as the state official responsible for overseeing the entire labour regulatory framework. The second respondent is the Registrar of Labour, also cited in his/her official capacity as the state official responsible for the registration, oversight and enforcement of employment codes of conduct and the Labour Relations (Employment Code of Conduct) Regulations, 1990 (SI 379 of 1990).

The applicant contended that the respondents' failure to ensure that registered employment codes of conduct are accessible in all official languages recognised under s 6(1) of the Constitution was unlawful and a denial of fundamental human rights. He asserted that the first respondent is the regulatory authority who, under s 17 of the Labour Act [Chapter 28:01] (*"the Act"*), is obligated to promulgate necessary regulations to operationalise the provisions of the Act. This constitutional obligation is to ensure that any statutory instrument is consonant with the fundamental principles enshrined in the Constitution. It was further averred that s 6(1) of the Constitution grants equal legal status to all official languages of Zimbabwe, which include, *inter alia*, English, Chewa, Kalanga, Nambiya, Ndebele, Shona, Sotho, Tonga, Venda, and sign language.

It was argued that the failure to ensure that the employment codes of conduct are translated into all the official languages violates the constitutional right of workers to equality and equal benefit and protection of the law as enshrined in s 56(1) of the Constitution. The same violates the right to fair labour practices and fair labour standards enshrined under s 65. His position was that the codes of conduct must be accessible in other official languages, and that their availability only in English infringes on workers' fundamental rights. The applicant also related to s 63(1) of the Constitution. He further asserted that, under such circumstances, the workplace disciplinary processes prejudice workers, as their codes are not available in their local languages. The applicant accordingly sought a declaratory order and consequential relief directing the respondents to ensure the mandatory translation of all registered employment codes of conduct, the national code of conduct SI 15 of 2006, and any other employment codes of conduct into the constitutionally recognised official languages in terms of s 6 of the Constitution, within the stipulated period.

It is common cause that on 15 December 2025, the first and second respondents, through their legal practitioners, filed their Notice of Opposition. The applicant filed a letter to the Registrar on 16 December 2025, stating that no opposing affidavit was filed with the Notice of Opposition on 15 December 2025. It was further stated that the application ought to be treated as unopposed since the *dies induciae* had lapsed by operation of law. On 16 December 2025, the first and second respondents filed their opposing affidavit. In the said opposing affidavit, points *in limine* were raised that:

1. The applicant lacked the *locus standi* to institute the present proceedings as provided for under s 85 of the Constitution;
2. There was improper use of language and scandalous averments in the founding affidavit; and
3. There was a fatal failure to cite the relevant parties, namely the Attorney-General of Zimbabwe and the affected employer or workers' organisations.

On the merits, it was contended that the application lacked merit. The respondents denied having any legal obligation to translate documents or employment codes of conduct. They averred that they do not author them as they are authored by employment councils or workers councils. They

denied that equality before the law is measured by language and accessibility. It was further contended that the applicant was being theoretical and invited the court to decide an abstract dispute. That employers explain codes of conduct to their employees during disciplinary processes, and that it was incorrect to argue that the processes are unfair simply because the codes are in the English language only. It was denied that the Minister, by failing to translate the employment codes, is in breach of his constitutional duty. It was also pointed out that the application lacked substance and ought to be dismissed.

In his answering affidavit, the applicant contended that the points *in limine* were devoid of merit and insisted on the application.

When the hearing commenced, the parties made submissions on the points *in limine* raised by the respondents. As I was in the process of delivering my decision, and before I could pronounce the decision on the points *in limine*, it dawned on me that there was an anomaly regarding the respondents' papers. I paused and immediately raised the point of law. The point of law related to the filing of the respondents' notice of opposition separately from the opposing affidavit. The legal issue was whether the respondents had complied with rule 59(7) of the High Court Rules, 2021, given the manner in which they filed their papers: a notice of opposition on 15 December 2025, while their opposing affidavit was filed separately on 16 December 2025. I invited the parties to make submissions on the point, and the following submissions were made.

THE ORAL SUBMISSIONS ON THE POINT OF LAW

Mr *Gundumura* submitted that both the notice of opposition and the opposing affidavits were filed right on time. He argued that while they appear to have different dates by the Registrar, the 15th for the notice and the opposing affidavit, the 16th, the papers were properly before the court. The notice and opposing affidavit were filed within the timeframe stipulated by the rules. He insisted that they were filed together. When the court queried how it could be argued that the papers were filed together, given the two different dates, counsel contended that on the face of it, that would appear as if they were not filed together, but if we look at it purposively, we might come to a different conclusion due to the fact that they were filed within the 10-day period.

Even when the court referred him to r 59(7), counsel insisted that the documents were filed together. When I further referred counsel to the provisions of SI 81/2024 on what the term "date of filing" means, he remained adamant that this is the actual date upon which the documents in question were actioned by the Registrar. He further submitted that there were no objections by the applicant in the heads of argument or answering affidavit to the effect that these documents were not filed properly or filed out of time. He, however, admitted that the letter at p 18 of the record raised the issue. I hasten to state that it appeared to me that counsel did not understand the point of law I raised and the meaning of rule 59(7). He even questioned whether they had to refile the notice of opposition and the opposing affidavit. I could not give him legal advice, unfortunately.

Per contra, Mr *Mucheche* argued that the word "together" simply means "simultaneously", "*pari passu"*, "contemporaneously", or "at the same time". He argued that that is the simple, ordinary grammatical meaning. The court adopts the ordinary grammatical meaning of the words used by the legislature. The point of law was brought to the respondents' attention by the letter uploaded on 16 December 2025, which appears at p 18 of the record. It was incumbent upon the respondents to do the needful, which they did not. He further submitted that the issue is a question of law which goes to the root of the proceedings. He cited the case of *Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S), which held that a question of law can be raised at any time if it goes to the root of the proceedings. This issue goes to the root of the proceedings. In the interest of fair play, the issue was brought to the respondents' attention by letter, as a matter of courtesy. The respondents completely ignored this issue. They downplayed it. It is a critical issue because it affects the integrity of the integrated electronic case management system.

Counsel went on to submit that the date the Registrar stamps the document is the official, authentic date that must be recognised. In this case, it was a piecemeal filing of documents, or filing in instalments. The rules do not allow that. The issue non-suited the respondents. Respondents who entered *via* the back door do not have to remain. Once you are picked to have entered *via* the back door, you get crushed. Then the proper course of action is that you have to leave and follow the front door. The rules must be obeyed, and the same applies to the Attorney General's office. If the court's view is that the respondents ought to be given that latitude or

indulgence, it also equally applies that they cannot cling to their perceived preliminary points in light of the fact that perhaps it is typical of a party trying to call a kettle black.

In reply, Mr *Gundumura* argued that the procedural irregularity can be condoned on the basis that, first, the notice of opposition was filed on time, and that the opposing affidavits were filed within the 10-day period as required by the rules. What was outstanding, which the respondents were now seeking, was the court's condonation of the respondents' failure to have the notice of opposition and the opposing affidavits consolidated into one document. But generally, these two documents were filed on time. The applicant did not pursue or argue that these two documents were filed out of time, and they are not causing any prejudice to him in the present circumstances. He submitted that the court could condone the respondents so that we could proceed under such circumstances.

Given that Mr *Gundumura* related to condonation, which aspect Mr *Mucheche* had not fully addressed, I gave him the opportunity to address me after the address by the respondents' counsel. Mr *Mucheche* argued that a legal nullity cannot be condoned. Once the notice and the opposing affidavit are filed separately, those documents bear a different legal complexion altogether. Rule 59(7) is mandatory. The issue was raised in the letter at p 18 and not addressed. There is, therefore, no condonation to be applied for in the face of a nullity. The *Macfoy* v *United Africa Co. Ltd* [1961] 3 All ER 1169 case demonstrates that a nullity cannot be condoned.

He further submitted that under the circumstances, the belated application for condonation was misplaced. It is like placing the cart before the horse. It has no legal basis or substance. The respondents were supposed to withdraw the defective documents and then file an application for condonation so that a proper notice of opposition would be filed. Under the circumstances, the respondents cannot, on this particular point, apply for condonation. You cannot apply for condonation for what is not there. A legal nullity cannot be condoned. The issue of having a second bite of the cherry is a prejudice on its own. It was also submitted that no application for condonation had been made before the court. That there was nothing to be condoned. The application must be treated as unopposed.

THE PRELIMINARY QUESTION FOR DETERMINATION

I must first determine whether or not the respondents' opposing papers are valid and properly before the court.

APPLICATION OF THE LAW TO THE FACTS

It is trite that a court of law must be satisfied that it has valid pleadings before it or that the parties are properly before it. It is also an established principle of law that the court is at liberty to raise a point of law which goes to the root of the proceedings or that affects the validity of the proceedings before it at any stage of the proceedings. Once it has raised a point of law *mero motu* it is obliged by law to hear the parties in submissions before it can determine the issue. This position was affirmed in *Nzara & Ors* v *Kashumba N.O. & Ors* SC 18/18 at pp 11-12 where UCHENA JA said:

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. **Where a point of law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them either in their pleadings in evidence or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.**
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> In *Welkom Municipality* v *Masureik and Herman T/A Lotus Corp* 1997 (3) SA 363 at 371 G-H Marais JA commenting on what the court should base its decision on said:
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> > "I should add that whether or not South Africa did or did not fail to do so is a question of fact upon which there was no evidence before the court *a quo*, and for reasons too obvious to require enumeration, **the learned Judge was not entitled to enquire into this issue of fact after reserving judgment and without any reference to the parties, and then to decide it.** Compare *Kauesa v Minister of Home Affairs and Others* 1996 (4) SA 965 (NmS) at 973H – 974C."
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> In the Namibian case of *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) 965 (NmS) DUMBUTSHENA AJA at pages 973H to 974C said:
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> > "The above matters are not crucial to the determination of this appeal. They are however, important because a frequent departure from counsel's, more correctly the litigant's case, may be wrongly interpreted by those who seek justice in our courts of law. **It is the litigants who must be heard and not a judicial officer.**
> >
> > **It would be wrong for judicial officers to rely for their decisions on matters not put before them by litigants either in evidence or in oral or written submissions. Now and again, a Judge comes across a point not argued before him by counsel but which he thinks material to the resolution of the case. It is his duty in such a circumstance to inform counsel on both sides and invite them to submit arguments either for or against the Judge's point. It is undesirable for a court to deliver a judgment with a substantial portion containing issues never canvassed or relied on by counsel**..." (*my emphasis*)

In any case, a point of law that goes to the root of the proceedings can be raised at any time, even by the court *mero motu*. See also *Muchakata* v *Netherburn Mine* (*supra*).

The applicable rule outlining how the notice of opposition and the opposing affidavit(s) must be filed is r 59(7). It provides as follows:

> "(7) The respondent **shall** be entitled, within the time given in the court application in accordance with subrule (6), to **file a notice of opposition, together with one or more opposing affidavits**." (*my emphasis*)

By the use of the word "shall", the provisions are clearly peremptory. The law is settled that where the word "shall" is used in a statute as opposed to the word "may", it shows that the legislature, in this case, the drafters of the rules, intended to make compliance mandatory or peremptory. Thus, *in Takashinga Kare Housing Pay Scheme* v *City of Harare & Ors* SC 88/25 at pp 12-13, MWAYERA JA restated the law in the following words:

> "29. … It is an established principle that the use of the word "shall" in a statutory provision denotes the legislature's intention of imposing a mandatory or peremptory obligation as opposed to the use of the word "may," which typically suggests a permissive or discretionary provision.
> 30. In *Mukwaira* v *Minister of Lands, Agriculture, Fisheries, Water & Rural Resettlement* SC 15/24, at p 15, the following pertinent sentiments were made:
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> > "It is trite that **where the word 'shall' is used it denotes a mandatory requirement. Thus, the use of the word "shall" in s 3 (1) (c) is imperative – it denotes that the section is peremptory, and thus compliance with its provisions is mandatory**."
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> 31. Similarly, in *Shumba & Anor* v *ZEC & Anor* 2008 (2) ZLR 65 (S) at 80 D-G, this Court held:
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> > "It is the generally accepted rule of interpretation that the use of peremptory words such as "shall" as opposed to "may" is indicative of the legislature's intention to make the provision peremptory. The use of the word "may" as opposed to "shall" is construed as indicative of the legislature's intention to make a provision directory. In some instances, the legislature explicitly provides that failure to comply with a statutory provision is fatal. In other instances, the legislature specifically provides that failure to comply is not fatal. In both of the above instances no difficulty arises. The difficulty usually arises where the legislature has made no specific indication as to whether failure to comply is fatal or not."
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> 32. Further, in *Sibanda & Anor* v *Ncube & Ors*/ *Khumalo & Anor* v *Mudimba & Ors* SC 158-20 at p. 15, PATEL JA (as he then was) held that:
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> > "The broad test for ascertaining the true nature of a statutory duty was enunciated more than a century ago in the case of *Howard* v *Bodington* (1877) 2 PD 203, at 211: '… in each case you must look to the subject-matter, consider the importance of the provision and the relation of that provision to the general object intended to be secured by the Act, and upon a review of the case on that aspect decide whether the enactment is what is called imperative or only directory…'"
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> In *Chirosva Minerals (Pvt) Ltd* v *Minister of Mines and Ors* 2011 (2) ZLR 274, the court held that **the disregard of a peremptory provision in a statute is fatal to the validity of the proceedings affected**." (*my emphasis*)

The law is clear, therefore, that non-compliance with a peremptory provision of a statute renders the proceedings or any process thereof a nullity. The same position was confirmed in *Moyo & Ors v Zvoma & Anor* SC 28/10 at p 14.

There is no doubt that rule 59(7) is peremptory, and any non-compliance therewith renders the purported opposing papers fatally defective. What is critical in that rule is that the notice of opposition and the opposing affidavit ought to be filed together. The cardinal rule of interpretation is that where the language used in a statute is clear and unambiguous, the words must be given the ordinary grammatical meaning unless to do so would lead to an absurdity. See *Zambezi Gas Zimbabwe v N R Barber (Pvt) Ltd & Anor* 2020 (1) ZLR 138 (S) at 143. The word "together" must be interpreted in its ordinary grammatical meaning, and there is no ambiguity that arises in the context of the peremptory provision. According to the Oxford Learner's Dictionary, the word "together" means: "with something else", "at the same time", "simultaneously" or "combined/joined". This means that to constitute a filing together, the notice of opposition must be filed at the same time or combined with the opposing affidavit(s). None can validly stand on its own in the absence of the other.

In this case, it is apparent from pages 16 and 19 that the notice of opposition was filed on 15 December 2025, while the opposing affidavit was then filed or accepted by the Registrar on 16 December 2025 as a stand-alone document. The date of filing is clearly defined in s 3 of SI 81/2024, which amended the current High Court Rules, 2021, as follows:

> "date of filing" means the **date on which any pleading** envisaged by these rules **is lodged with and accepted by the Registrar**." (*my emphasis*)

There is no doubt, in this case, that the date upon which the notice of opposition and the opposing affidavit were accepted by the Registrar is different. The documents were filed separately and on different dates. The Registrar's endorsements that the document was accepted show the date of filing. To that extent, I found it quite strange that Mr *Gundumura* submitted that these documents were filed together or at the same time. There ought to have been no argument, clearly, as the notice of opposition was duly stamped 15 December 2025, while the opposing affidavit was stamped 16 December 2025. The documents were filed separately and not together as *per* the mandatory requirement of rule 59(7). There was no point in arguing that the sets of documents were filed together. The respondents failed to comply with the peremptory provisions

of r 59(7). This rendered the respondents' purported opposing papers fatally defective and, therefore, a nullity.

When my exchanges with counsel for the respondents continued, he belatedly sought to argue that this irregularity could be condoned on the basis that the papers were, in any case, filed within the *dies induciae* and that there would be no prejudice to the applicant. The attitude taken by counsel was simply that condonation is there for the mere asking. It is trite that the indulgence of condonation can only be granted provided that the applicant has made a proper application and has satisfied the basic requirements for an application of that nature namely that the delay was inordinate in the circumstances, the explanation for the delay was reasonable, that there are prospects of success on the merits and that there is no possibility of prejudice to the respondent if the application is granted. See *Doves Funeral Assurance (Private) Limited* v *Harare Motorway (Private) Limited and 4 Others* SC 63/23 at pp 6-7.

However, in this case, the effect of non-compliance with the peremptory provisions of r 59(7) rendered the respondents' opposition fatally defective or a nullity. It is trite that a nullity cannot be condoned or amended. It is nothing upon which nothing can stand. This legal position was long settled in *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S). The judgment was extensively quoted in *Moyo & Ors* v *Zvoma & Anor* from pp 12-14, where CHIDYAUSIKU CJ (as he then was) held as follows:

> "In *Jensen v Acavalos* 1993 (1) ZLR 216 this Court held that by use of the word "shall" compliance with the requirement of r 29 was peremptory and that failure to comply with the rule rendered the Notice of Appeal a nullity and that such a notice cannot be condoned or amended. KORSAH JA at 219D had this to say about the Notice of Appeal that did not comply with r 29 of the Supreme Court Rules:
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> > "This notice of appeal was defective for non-compliance with the mandatory provisions of Rule 29, subrules (c), (d) and (e) which require the applicant or his legal representative to state: (i) whether the whole or only part of the judgment is appealed against; (ii) the ground of appeal to be set forth concisely and in separately numbered paragraphs; and (iii) the exact nature of the relief which is sought."
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> The learned JUDGE OF APPEAL further stated at pp 219H-220D:
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> > "The notice of appeal, being bad for non-compliance with the rules, was not cured by the filing on 3 January 1990, of grounds of appeal without a prayer. Indeed, even if the grounds of appeal filed on 3 January 1990 had contained a prayer for relief, it would not have been effectual in validating the defective notice of appeal.

> **The reason is that a notice of appeal which does not comply with the rules is fatally defective and invalid. That is to say, it is a nullity. It is not only bad but incurably bad, and, unless the court is prepared to grant an application for condonation of the defect and to allow a proper notice of appeal to be filed, the appeal must be struck off the roll with costs**: *De Jager v Diner & Anor* 1957 (3) SA 567 (A) at 574 C-D.

In *Hattingh v Pienaar* 1977 (2) SA 182 (O) … at 183, KLOPPER JP held that **a fatally defective compliance with the rules regarding the filing of appeals cannot be condoned or amended. What should actually be applied for is an extension of time within which to comply with the relevant rule**. With this view I most respectfully agree; for if the notice of appeal is incurably bad, then, to borrow the words of LORD DENNING in *McFoy v United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I, 'every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse'."

GUBBAY CJ and MANYARARA JA concurred. In *Matanhire* v *BP & Shell Marketing Services (Pvt) Ltd* 2004 (2) ZLR 147 (S) MALABA JA (as he then was) expressed the same sentiments when he stated at 149 E-G:

> "A nullity cannot be amended. In *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S) KORSAH JA at 220B said that the reason why a fatally defective notice of appeal could not be amended was that:
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> '… it is not only bad but incurably bad'.
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> Citing *Hattingh* v *Pienaar* 1977 (2) SA 182 (O) at 183 for authority, the learned JUDGE OF APPEAL said that **what should actually be applied for is an extension of time within which to comply with the relevant rule and condonation of non-compliance**.
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> …
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> **It is quite clear from the above authorities that failure to comply with peremptory language of a Statute can lead to a nullity**." (*my emphasis*)

The respondents' papers lacked legal existence. They were a legal nullity. Counsel could not ask me to condone a nullity or accept those papers. A legal nullity begets no valid process. It is incurably bad, and nothing can flow from a nullity. The papers could not be accepted as they did not exist at law. The respondents could only properly apply for condonation and extension of time to file a proper notice of opposition and opposing affidavit. He could not seek that the court condone a nullity.

Mr *Gundumura* adopted a cavalier approach. Initially, he stood his ground, insisting that the papers were valid. And the court had to direct him to the relevant provisions of the rules, including the definition of the "date of filing". He then turned and belatedly sought condonation. But he sought that I condone something that is a nullity. It was not that he intended to file valid pleadings. As alluded to above, the court cannot be asked to condone a nullity. The court is not enjoined to inquire into other issues, including the requirements for granting condonation, where

the condonation was sought to have a nullity accepted as properly filed. It must be emphasised that the rules of court are very important in the administration of justice. Any litigant who disregards the rules of court may find him/herself non-suited. Thus, in *Museredza & Ors* v *Minister of Agriculture, Lands, Water and Rural Resettlement & Ors* CCZ 01/22 at p 14 para 27 GOWORA JCC said:

> "It goes without saying that rules of court serve an important purpose. **They must not, and, cannot be disregarded unless the court has been persuaded, on very strong grounds, to do so**. This is why a litigant who wishes to exercise the right to access the court is required to follow certain and specified procedures. In this context, rules of court not only ensure certainty of the processes of court proceedings, the litigants are also provided with a fair playing ground for the adjudication of disputes. **It is fair to state that the rules ensure that the interests of justice are served.**" (*my* emphasis)

Consequently, in light of the principles set out in our law, there is nothing before me from the respondents. There is also nothing to condone, as the court cannot condone a nullity. Their purported notice of opposition and opposing affidavit being a nullity are accordingly struck out or expunged from the record, and the matter shall proceed as unopposed.

THE UNOPPOSED APPLICATION

The application was now unopposed. After hearing Mr *Mucheche*, I saw no reason not to grant the order sought in the draft order attached to the application. The court accordingly entered judgment in favour of the applicant, with no order as to costs, as fully stated above.

DEMBURE J: ……

Caleb Mucheche & Partners Law Chambers, applicant's legal practitioners
Civil Division of the Attorney-General's Office, respondents' legal practitioners